

[REDACTED]
Huntsville, AL 35803
July 30, 1991

[REDACTED]
[REDACTED]
[REDACTED]
Chattanooga, TN 37402

Dear [REDACTED],

I wanted to thank you for helping me out with the problems with my mother's estate, and provide more information. I am enclosing a copy of mom's will (see Item 1) and copies of receipts to show why and how I believe my brother shortchanged me on the cash from our mother's estate.

To recap, I visited my brother, Fred Lawhorn ([REDACTED] [REDACTED]) over the Memorial Day weekend. He mentioned at that time that all the money from mom's bank accounts had been disbursed. From what I had received and knew of the accounts, I thought that there should have been almost \$15,000 remaining. After returning home and double-checking my figures, I asked if he had missed clearing one account, which could have accounted for the difference. He said he had closed that one, and that he had split the money with me back in August or September 1990. I then asked for copies of the bank statements, so I could see the amounts that went in and out to check things for myself. He said that he couldn't find them. On June 27, I wrote the lawyer handling the estate [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED], explaining the problem. I am enclosing a copy of that letter as Item 2. After waiting three weeks on that lawyer without a response, I contacted [REDACTED] [REDACTED], in charge of probate, in Hickman County. She said I might want to get my own lawyer to help out. My mother-in-law recommended an attorney in Chattanooga, who referred me to you.

My brother closed out mom's bank accounts around August 1990. I don't have the final figures for all the accounts or land sales, so these can only be approximations until we can get the actual figures. Item 3 shows copies of the bank statements for the accounts Fred closed and they give an approximate balance of \$18,260.23. He has said that he split the money with me in August or September. I figure he took his half then, and intended to give me the rest later, but never did. Mom's house and one parcel of land sold in October-November 1990 and Fred split that money with me (see Items 4 and 5). Another parcel was sold January 30, 1991 for \$7,500 (gross) and more money was dispersed (see Items 4 and 5). Now from that transaction for the land, I should have received half, or around \$3,750. Note that the check was for \$6,550. I believe it covers the land, and Fred split the remaining money in the account, which should have been mine.

To sum it up, Fred should account for the balances from: 1 - the bank accounts (\$18,260.23), 2 - The house and land sale (\$82,116.98), and 3 - the other land sale (\$7,500). The total amount is approximately \$107,877.21. We should have each received half, or \$53,938.60. My receipts show that I received \$47,608.49. Since Fred says all the money is gone, I assume he got the remaining \$60,268.72.

My brother is having serious financial problems. He keeps talking of declaring bankruptcy. His phone is currently disconnected, and has been shut off several times in the past year. Collectors for his student loans, college housing, and car loan have called my house in the past year trying to locate him. He has gone through his second marriage (December 1990) and divorce (June 1991). He even called me collect on July 21 to ask for \$500 to help pay his bills.

There is not much remaining in the estate. About \$3,655 is in a credit union in Nashville, which my brother has probably gotten by now. There is also one small tract of land which was on the market for a year without selling. There is also a lot in Cleveland which my late father had sold, and we are having extreme problems getting the folks to make their payments. They have only made one payment so far this calendar year. There is \$3,133.48 remaining in an account I had access to, and used to pay the bills. I realize that paying the bills for the estate is the executor's job, but I wanted to make sure that the bills were paid. I have receipts for the expenditures. The only remaining debts are for the attorney fees whenever the estate is settled.

The co-executor for the estate is my uncle, [REDACTED] of Frankfort, Kentucky. I want to emphasize that he is not in any way responsible for the current problem. I don't want to cause [REDACTED] any worry or expense.

Again, I'd like to thank you for your assistance, and the friendly way that you helped when I called on July 22. Please write, or call me at [REDACTED] (home) or [REDACTED] (work) as soon as possible to let me know of your progress. I'd like to see this settled with a minimum of hassle and expense. I feel I've tried everything possible that I can do myself, and I look forward to your help in securing a speedy resolution to this problem.

Sincerely yours,

Eddie Lawhorn

Enclosures:

- Item 1 - Lou Anna Lawhorn will
- Item 2 - Letter to [REDACTED]
- Item 3 - Bank account statements
- Item 4 - Real estate statements
- Item 5 - Disbursement receipts